ACT NO. 15 OF 2012

Land Survey (Amendment) Act, 2012

An Act to amend the Land Survey Act, 1980[1].

Enacted by the Parliament of Lesotho.

Short title and commencement

1. This Act may be cited as the Land Survey Amendment Act, 2012 and shall come into operation on the date of its publication in the Gazette.

Interpretation

2. The Land Survey Act, 1980 (in this Act reffered to as "the principal law") is amended in section 2 by inserting the following definition in the proper alphabetical order:

> **"Authority"** means the Land Administration Authority established by the Land Administration Authority Act, 2010[2];".

Office of the Chief Surveyor and its functions

3. The principal law is amended in section 3(1) -

(a) by deleting the words "Public Service" and substituting the words "Authority";

(b) in paragraph (f) by deleting the full stop (.) and substituting a semi colon (;);

(c) by adding the following paragraph after paragraph (f):

"(g) to administer the land cadastre system, which includes the following tasks -

(i) retaining accurate information and maps on the land cadastre system;

(ii) registering land onto the cadastre on request from the title holder;

(iii) updating the cadastre with details of any consolidations, sub-divisions or other changes in legal boundaries;

(iv) providing maps and other information regarding the cadastre upon request; and

(v) to resolve, administratively registration and cadastre complaints and disputes with regard to land parcel boundaries.".

Duties of licensed surveyors and non-liability of the Government

4. The principal law is amended in section 14(2) by deleting the words "the Government nor any public officer" in the first line and substituting the words "the Authority nor any officer of the Authority".

Delegation of functions

5. The principal law is amended in section 24 by deleting the words "public officer" and substituting the words "an officer of the Authority".

NOTE

1. Act No. 14 of 1980
2. Act No. 9 of 2010

GOVERNMENT NOTICE NO. 31 OF 2012

The Parliament of Lesotho

Statement of Objects and Reasons of the Land Survey (Amendment) Act, 2012

(Circulated by the Authority of the Minister responsible for local government and chieftainship affairs)

1. The proposed reform

The Land Survey (Amendment) Bill, 2011 proposes to transfer the position of the Chief Surveyor and related land survey and mapping functions from the Public Service to the Land Administration Authority (LAA) and thereby harmonizing the Land Survey Act, No. 14 of 1980 with the Land Administration Authority Act, No. 9 of 2010.

2. The Current Position

The Parliament of Lesotho in 2010 enacted the Land Administration Act, 2010 and created the Land Administration Authority which among others has been vested with performance and control of survey functions in Lesotho. The Chief officer responsible for survey matters in Lesotho is the Chief Surveyor, a position created within the Public Service of the Government of Lesotho in terms of the Chief Survey Act 1980. Since the Land Administration Authority Act vests the LAA with survey functions which were initially carried out by the Government department of Lands Survey and Physical Planning (LSPP), it is only ideal that the position of the Chief Surveyor be transferred to the LAA which has since taken over the survey functions.

3. Rationale/objectives to be achieved through the Land Survey (Amendment) Bill, 2011

The Land Survey (Amendment) Bill 2011 will bring harmony between the Land Survey Act, 1980 and the Land Administration Act, 2010 which are currently contradictory in terms. Among others, it will remove the position of the Chief Surveyor from the Public Service and place it within the LAA; and it will provide for delegation of such functions to officers within the LAA; and it will provide for levying of surveying services by the LAA.

4. Consultations with stakeholders

The amendments proposed in the Land Survey (Amendment) Bill, 2011 came about as a result of discussions and deliberations by different stakeholders in land matters. The inconsistency between the Land Survey, 1980 and the Land Administration Authority Act were first noted by the LAA, and the legal consultants who have been engaged under the Land Administration Reform Project. The legal consultants brought the inconsistency to the attention of the Minister of Local Government and Chieftainship through a detailed report which even suggested the legal remedies which could be adopted to address the problem. The advice of the Attorney General was even sought in early 2011 regarding the general inconsistencies which were apparent in land administration matters following the enactment of the Land Administration Authority Act and the establishment of the LAA.